

Dr. Umesh Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 February 2016 · WRIT - C No. - 6706 of 2016 · **Writ disposed; EE Bareilly to decide representation; merits not adjudicated**

HEADNOTE

A consumer invoking Clause 5.6(c)(iii) of the U.P. Electricity Supply Code, 2005 for independent laboratory testing of a defective meter, after a representation to the Executive Engineer had remained undecided, obtained only a direction that the representation be decided in accordance with law. The High Court did not examine whether the option exercised at sealing entitled the consumer to independent testing, or whether the licensee's own test bound him.

FACTUAL SUMMARY

Dr. Umesh Singh invoked Clause 5.6(c)(iii) of the U.P. Electricity Supply Code, 2005, seeking independent laboratory testing of a defective meter. He had exercised that option when the meter was sealed on 3 November 2014. The distribution corporation instead tested the meter itself; he disputed the result. On 18 August 2015 he represented to the Executive Engineer, Bareilly, for independent testing. No order had been passed and the meter had not been independently tested. Counsel for the corporation stated that the representation would be decided.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6(c)(iii)

independent laboratory testing of defective meter

HOLDING

Where a consumer had invoked Clause 5.6(c)(iii) for independent laboratory testing of a defective meter after exercising that option at sealing, and a representation to the Executive Engineer remained undecided, the writ was disposed of with a direction to the Executive Engineer, Bareilly, to decide the representation in accordance with law, preferably within one month of a certified copy being filed. The Court made it clear that it had not adjudicated the merits. ¶ 1

PRINCIPLE TAGS

meter-dispute-must-exhaust-clause-5.6-before-writ

A consumer invoking Clause 5.6(c)(iii) of the U.P. Electricity Supply Code, 2005 for independent laboratory testing of a defective meter, after a representation to the Executive Engineer had remained undecided, obtained only a direction that the representation be decided in accordance with law.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 5.6(C)(III) REQUIRED INDEPENDENT LABORATORY TESTING AFTER THE CONSUMER'S OPTION AT SEALING, AND WHETHER THE CORPORATION'S OWN TEST BOUND THE CONSUMER

Court expressly declined to adjudicate merits; left to the Executive Engineer, Bareilly. ¶ 1